

Determining off-payroll (IR35) status

A short guide for Ørsted contract managers and line managers using the Ascend IR35 Workbench to assess roles and workers and produce Status Determination Statements (SDS).

Three things to keep in mind

- The Workbench is **decision-support, not legal advice**. Ørsted, as the end-hirer, makes and signs off every determination and remains legally responsible for it.
- A **role** result is a **provisional lean only — never an SDS**. Only a **per-worker** assessment produces an SDS.
- Any **borderline** case is routed automatically to a qualified reviewer before an SDS can issue. That human gate is what evidences **reasonable care** to HMRC.

1 Signing in

1. Go to **ir35-workbench.ascend-people.ai/Orsted/**
2. Enter the access code: **Orsted-IR35-575F5D**
3. Type your name (recorded on the audit trail) and choose your role — **Client Administrator** (full access: assess, issue SDS, manage users) or **Line Manager** (assess, and filter to your own workers).

2 The tabs at a glance

Reporting Dashboard — live picture: workers in scope, SDS issued, outside / inside / borderline, insurance cover.

New Assessment — run a status assessment (per-worker or role-based).

JD Analyser — paste a job description for a quick provisional lean (triage only, never a determination).

Role Library — pre-assessed roles that pre-fill a worker's assessment and carry the prior reasoning.

Worker Register — every assessed worker, their outcome, SDS state and next review date.

Review Queue / SDS Reviews — borderline cases awaiting sign-off, and the record of issued SDSs.

Audit & Disputes — the full audit trail and any raised disagreements.

3 Two ways to assess

- **Role-based** (builds your library) — assess a role *as it is typically engaged*. Produces a provisional lean and saves to the Role Library. Never issues an SDS. Do this once per role type; it then pre-fills every worker in that role.
- **Per-worker** (issues an SDS) — assess a named individual against their *actual* engagement. Produces an SDS, or routes to review if borderline.

4 Assessing a role

1. **New Assessment** → choose **Role — library**.
2. Optionally paste the job description into **JD Analyser** first for a quick lean, then take it into a full assessment.

3. Enter the **role title, sector and typical engagement**.
4. Answer each question — most are three-way (points *outside* / neutral / points *inside*). Guidance notes appear on several questions to keep answers consistent.
5. **Add a short note** wherever an answer is "in between" or needs context — this becomes your evidence.
6. **Run** to see the provisional lean and score, then **Save to role library**. You can **Edit** a saved role any time to refine wording or add evidence.

5 Assessing a worker & issuing an SDS

1. In the **Role Library**, open the matching role and choose **Pre-fill a worker** → (or start a per-worker assessment from scratch).
2. The role's answers pre-populate; you only answer the **few worker-specific questions** (e.g. whether the contract has commenced, whether the individual has previously been an employee, and the person / company name).
3. **Run**. If the result is Outside or Inside, an **SDS** is produced and the worker appears in the **Worker Register**. If **Borderline**, it is routed automatically to the reviewer — no SDS issues until they sign off.
4. Each SDS carries a **12-month review trigger**, and a new SDS is needed if the worker changes role or assignment.

6 Reading the result

- **OUTSIDE** the engagement looks genuinely self-employed — an SDS can be drafted.
- **INSIDE** employment-like — taxed as employment.
- **BORDERLINE** mixed picture — routed to a qualified specialist before any SDS. This is by design, not a fault.

7 Good practice (reasonable care)

- Answer against the **actual working practices**, not the label on the contract.
- Add **evidence notes** as you go — they are your defence if HMRC ever asks.
- Let borderline cases **go to review**; don't force a determination.
- Re-assess on any **material change** to role, rate or working practices.

Ascend IR35 Workbench — Ascend Workforce Solutions IP. Decision-support, not legal advice; determinations are made by the end-hirer (Ørsted), who remains legally responsible for them. Ruleset v0.3 (provisional, pending final adviser calibration). Questions: Aaron George, Ascend — aaron@ascend-people.com.